



Order under Section 31, 30 and 69 Residential Tenancies Act, 2006

Citation: 1030553 Ontario Limited v Loncar, 2025 ONLTB 96531

Date: 2025-12-18

File Numbers: LTB-T-092247-24
LTB-T-092452-24
LTB-L-094769-24

In the matter of: 1517, 33 HOLLY ST TORONTO
ON M4S2G8

Between: 1030553 Ontario Limited Landlord

And

Dragan Loncar Tenants
Lori Wands

LTB-T-092247-24 T2 Application

Dragan Loncar and Lori Wands (the 'Tenants') applied for an order determining that 1030553 Ontario Limited (the 'Landlord'):

- substantially interfered with the Tenants' reasonable enjoyment of their rental unit; • harassed, coerced, obstructed, threatened, or interfered with the Tenants; and
- withheld or interfered with their vital services.

LTB-T-092452-24 T6 Application

Dragan Loncar and Lori Wands (the 'Tenants') applied for an order determining that 1030553 Ontario Limited (the 'Landlord') failed to meet the Landlord's maintenance obligations under the *Residential Tenancies Act, 2006* (the 'Act') or failed to comply with health, safety, housing or maintenance standards.

LTB-L-094769-24 L2 Application

1030553 Ontario Limited (the 'Landlord') applied for an order to terminate the tenancy and evict Dragan Loncar and Lori Wands (the 'Tenants') because:

- the Tenants, another occupant of the rental unit or someone the Tenants permitted in the residential complex have substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the Landlord or another tenant;
- the Tenants or another occupant of the rental unit have committed an illegal act or have carried out, or permitted someone to carry out an illegal trade, business or occupation in the rental unit or the residential complex; and
- the Tenants, another occupant of the rental unit or a person the Tenants permitted in the residential complex have seriously impaired the safety of any person and the act or omission occurred in the residential complex.

The Landlord also claimed compensation for each day the Tenants remained in the unit after the termination date.

These applications were previously adjourned on May 12, 2025, and on July 7, 2025. The adjourned hearing for all three applications was heard by videoconference on December 11, 2025. Tenant Dragan Loncar, the Tenants' representative, Naseer Ahmed, and the Landlord's representative, Howard Levenson, attended the hearing.

On consent of the parties, it is ordered that:

1. The tenancy between the Landlord and the Tenants is terminated. The Tenants must move out of the rental unit on or before March 31, 2026. This termination is non-voidable.
2. If the unit is not vacated on or before March 31, 2026, then starting April 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after April 1, 2026.
4. If the Tenants secure a new rental unit before March 31, 2026, the Tenants shall provide the Landlord with a 10-day written notice before they vacate the unit.
5. Both parties agree that this order represents the full and final settlement of all tenancy issues to the date of this order.

6. The last month's rent deposit shall be applied for the rent payment for the month of March 2026.
7. The unit shall be left in a clean and room swept condition without damage, less normal wear and tear.
8. Pending the Tenants vacating the unit on or before March 31, 2026, the Tenants shall cease in engaging in disruptive conduct, to include slamming the door, screaming and yelling.

December 18, 2025

Date Issued

Frank Ebner

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor,
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenants expires on October 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

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2025 ONL TB 96531 (CanLII)